

IN THE SENATE

SENATE BILL NO. 1313

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO NATUROPATHIC DOCTOR LICENSING AND NATUROPATH REGISTRATION;
AMENDING SECTION 54-5902, IDAHO CODE, TO REVISE A DEFINITION; AMENDING
SECTION 54-5905, IDAHO CODE, TO PROVIDE FOR THE VOLUNTARY LICENSURE OF
PHARMACISTS AS NATUROPATHIC DOCTORS; AMENDING SECTION 54-5912, IDAHO
CODE, TO SPECIFY THAT A CERTAIN BOARD MEMBER SHALL NOT BE LICENSED UNDER
CHAPTER 59, TITLE 54, IDAHO CODE, BUT SHALL BE LICENSED AS A PHARMACIST
PURSUANT TO IDAHO CODE; AND DECLARING AN EMERGENCY AND PROVIDING AN EF-
FECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 54-5902, Idaho Code, be, and the same is hereby
amended to read as follows:

54-5902. DEFINITIONS. As used in this chapter:

(1) "Board" means the Idaho board of naturopathic health care.

(2) "License" means a license to practice as a licensed naturopathic
doctor.

(3) "Licensed naturopathic doctor" means an individual licensed as a
medical doctor, doctor of osteopathy, doctor of podiatric medicine, doctor
of chiropractic, doctor of dental medicine, pharmacist, or doctor of nursing
practice who has obtained an approved naturopathic doctoral degree, as set
forth in rule, and who voluntarily elects to seek and receives licensure un-
der this chapter to practice naturopathic health care in Idaho.

(4) "Minor procedure" means the use of operative, electrical, or other
methods for repair and care incidental to superficial lacerations, abra-
sions, superficial lesions, the removal of foreign bodies located in the
superficial tissues, and the use of antiseptics and local topical anesthet-
ics in connection with such methods.

(5) "Naturopathic health care" means the delivery of a distinct pri-
mary health care emphasizing prevention, treatment, and optimal health us-
ing therapeutic methods and substances that encourage an individual's in-
herent self-healing process by a naturopathic practitioner.

SECTION 2. That Section 54-5905, Idaho Code, be, and the same is hereby
amended to read as follows:

54-5905. VOLUNTARY NATUROPATHIC DOCTOR LICENSURE -- REQUIREMENTS --
LIMITATIONS. (1) An applicant shall be qualified for voluntary licensure as
a naturopathic doctor pursuant to this chapter if such applicant:

(a) Possesses current, valid, and unrestricted licensure in any state,
district, or territory of the United States in at least one (1) of the
following medical professions:

(i) Medical doctor or doctor of osteopathy;

- 1 (ii) Podiatrist;
 2 (iii) Dentist;
 3 (iv) Chiropractor, if such applicant possesses an accredited
 4 doctoral degree in chiropractic medicine as required pursuant to
 5 chapter 7, title 54, Idaho Code; ~~or~~
 6 (v) Nurse, if such applicant possesses a level of training and ed-
 7 ucation equivalent to an advanced practice registered nurse pur-
 8 suant to chapter 14, title 54, Idaho Code, and has achieved an ac-
 9 credited doctorate degree in nursing; or
 10 (vi) Pharmacist, if such applicant possesses a level of training
 11 and education equivalent to the requirements for pharmacist li-
 12 censure pursuant to section 54-1722, Idaho Code;
 13 (b) Has obtained a certificate of satisfactory completion of a naturo-
 14 pathic doctor curriculum consisting of at least one hundred sixty (160)
 15 credit hours from an institution accredited by an accreditation agency
 16 approved by the United States department of education;
 17 (c) Has not pled guilty to or been convicted of a crime that is deemed
 18 relevant in accordance with section 67-9411(1), Idaho Code, unless such
 19 applicant demonstrates that he has been sufficiently rehabilitated to
 20 warrant the public trust; and
 21 (d) Completes any one (1) of the following:
 22 (i) At least four (4) years of experience in the practice of
 23 naturopathic health care in Idaho that is acceptable to the board;
 24 provided, however, a practitioner who has at least two (2) years
 25 of naturopathic health care experience that is acceptable to the
 26 board and that occurred on or before July 1, 2024, shall satisfy
 27 the requirements of this paragraph;
 28 (ii) Passage of an Idaho state examination proving minimum com-
 29 petency and skills, to be developed and approved by the board by
 30 rule and the American naturopathic medical certification board
 31 pursuant to this chapter; or
 32 (iii) Passage of any national board examination that certifies the
 33 individual has achieved minimum competency and skills in the prac-
 34 tice of naturopathic health care as approved by the board by rule.
 35 (2) A license issued under this chapter shall:
 36 (a) Be issued in the name of the licensed naturopathic doctor;
 37 (b) State the issue and expiration date; and
 38 (c) Always be displayed in a conspicuous manner in the place of business
 39 or employment of the licensee.
 40 (3) A licensed naturopathic doctor may also use the title "licensed
 41 doctor of natural health" or "licensed naturopathic practitioner."
 42 (4) All applications for licensing shall be reviewed and approved by
 43 the board on an individual basis.
 44 (5) A person who is not licensed pursuant to this chapter shall not:
 45 (a) Hold himself out as a naturopathic doctor licensed under this chap-
 46 ter;
 47 (b) Use or advertise using the title of licensed naturopathic doc-
 48 tor (LND), licensed naturopathic practitioner (LNP), or any variant
 49 thereof; or

(c) Use any words, abbreviations, figures, configuration of letters, titles, signs, cards, or devices tending to imply that the person is a naturopathic doctor licensed in the state of Idaho.

(6) Notwithstanding the provisions of subsection (5) of this section, a person who is a licensed naturopathic medical doctor pursuant to chapter 51, title 54, Idaho Code, may use the title "licensed naturopathic doctor."

(7) No license shall be issued by the board until the board has finalized and approved licensure requirements by rule as provided by this chapter and the legislature has approved all rules governing licensure adopted by the board.

SECTION 3. That Section 54-5912, Idaho Code, be, and the same is hereby amended to read as follows:

54-5912. FORMULARY COMMITTEE. (1) The board shall appoint a formulary committee consisting of one (1) member who is ~~licensed under chapter 18, title 54, Idaho Code, to practice in Idaho as a pharmacist (PharmD) who is not licensed under this chapter but is licensed pursuant to Idaho Code,~~ two (2) members who are either a doctor of osteopathy or a doctor of medicine and who are not licensed under this chapter but are licensed pursuant to Idaho Code, and two (2) members who are licensed under this chapter and possess full federal drug enforcement agency (DEA) registration in good standing.

(2) All members of the formulary committee shall possess a valid and active DEA number and be authorized to prescribe within the United States.

(3) Initially, three (3) members shall serve for three (3) years and two (2) members shall serve for two (2) years. After the initial appointments, all terms of appointment shall be for three (3) years. No member may serve for more than two (2) consecutive terms.

(4) The formulary committee shall act in an advisory role in evaluating prescriptive authority for applicants or other similar issues as called upon by the board. However, the formulary committee shall first approve the scope of prescriptive rights that individuals licensed under this chapter may use before the board approves the scope of prescriptive rights.

SECTION 4. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.